

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMANDA LORRAINE FULFORD,

Petitioner

VS.

DAVID ERNESTO SALGUERO,

Respondent

) Case Number: FDI-22-797070

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Amanda Fulford (Mother) and Respondent David Salguero (Father). The parties married on 5/4/2020 and they agree their date of separation is 9/30/2022, for a marriage of 2 years and 5 months. The parties have one minor child, Gabriel (DOB: 11/30/2020, age 5). Both parties are currently self-represented.
- 2) On 11/20/2025, following a three-afternoon trial in September 2025, Judge Costin issued a Final Statement of Decision. Among other orders made, the Final Statement of Decision includes a denial of Mother's request to renew the one-year Domestic Violence Restraining Order issued on 10/8/2024. The Final Statement of Decision also requires Father to pay Mother \$1,039 in guideline monthly child support effective 1/1/2026. The child support calculation is based on Father's having a 50% timeshare, Father's average monthly income of \$14,533, and Mother's average monthly income of \$2,001. The Statement of Decision further requires Father to pay Mother \$3,000 per month between October 2025 through June 2028 to satisfy a total balance of \$63,078.69 owed for child support arrears, attorney's fees, and an equalization payment. The

1 Court notes that the fee award stated in the Statement of Decision was not a new fee award; it was
2 a finding that Father still owed \$72,295.40 for a fee award made on 1/14/2025.

3 3) On 1/20/2026, Father filed an appeal of Judge Costin's 11/20/2025 Final Statement of Decision.
4 Father's appeal currently remains pending.

5 4) At the prior 3/10/2026 hearing (per the Findings and Order After Hearing filed 4/1/2026), the
6 Court adjudicated Father's Request for Order filed 12/10/2025 wherein Father states he was
7 involuntarily laid off on 11/3/2025 and he has no income, savings, or access to credit. The Court
8 set child support to \$0 effective 12/10/2025, after finding that both parties earn minimal income
9 and cannot afford to pay any amount to the other party. The Court also suspended pending further
10 Court order the requirement that Father pay \$3,000 per month towards amounts owed to Mother
11 for child support arrears, attorney's fees, and an equalization payment. The Court further ordered
12 Father to seek work effective immediately. A review hearing was set for July 2026.

13 5) The Court notes that the Tentative Ruling that was issued prior to the 3/10/2026 hearing date
14 (which was adopted as an order of the Court without objection by either party) contained a future
15 review hearing date of 7/26/2026. However, the date that was actually calendared was 7/16/2026.
16 In the parties most recently filed declarations, both parties cite a review hearing date of
17 7/16/2026, so it appears both parties understand that the review hearing is set for 7/16/2026.

18 6) On 7/6/2026, Mother filed an Income and Expense Declaration wherein she states she began a
19 position as a Camp Recreation Specialist on 4/18/2026. Mother states she works 40 hours per
20 week and earns \$30 per hour.

21 7) Attached to Mother's 7/6/2026 Income and Expense Declaration is a declaration by Mother
22 wherein she requests that the Court reinstate child support at an appropriate amount consistent
23 with the evidence before the Court. Mother states that although she is currently employed, she
24 struggles to meet her financial obligations. Mother states she has had to repeatedly borrow money
25 from family members.

26 8) On 7/13/2026, Father filed an Income and Expense Declaration (showing \$0 in income) as well as
27 a Declaration and Memorandum of Points and Authorities wherein Father asks the Court to
28 maintain the current orders and decline to impute income to Father. Father states that since
29 3/10/2026, Mother has become employed full-time, working 40 hours per week, and she also

1 graduated and earned her bachelor's degree. Father states, "Since March 10, 2026, I have applied
2 to over 101 roles and interviewed for multiple opportunities. I have been subjected to intensive
3 take-home test assignments, timed live 'coding challenges' and multiple interview rounds. I have
4 advanced in the interview process. I have obtained second and third rounds, completed a
5 substantial take-home test, and advanced through executive interviews... I am in consideration
6 for multiple opportunities. However, I have not yet received an offer of employment. In
7 compliance with court seek-job order, I have dutifully devoted at least 25 hours a week on my job
8 search. I also timely served upon Petitioner every month my job search log...I have performed
9 these efforts while responsibly fulfilling my 50% physical custody role as a father... As delineated
10 in my March 6, 2026 filing, starting in December 2025, I received \$450 per week in
11 unemployment benefits. Those benefits ended the week of 5/31/26 and totaled \$11,700 gross. I
12 also received a one-time net severance payment of \$10,476.23 from my previous employer in
13 February 2026. These funds were used for rent, food, transportation, and Gabriel's needs. My rent
14 is \$2,400 per month. The rent alone exceeded my monthly unemployment benefit (\$1,950).
15 Family members and friends have provided me with occasional one-off emergency loan
16 assistance for rent and food. Those loans are not recurring or sustainable. My updated July 2026
17 FL-150 documents more than \$258,804.69 in debt liabilities, no meaningful savings, and no
18 available revolving credit... Without substantial evidence of both ability and opportunity, earning
19 capacity is absent and imputation is legally improper. Petitioner identifies no available position,
20 no employer willing to hire Father, no vocational evaluation, no labor-market survey, and no
21 evidence of prevailing compensation for an available position matching Father's current
22 qualifications. Petitioner instead relies exclusively upon Father's former \$14,533 monthly salary
23 that ended involuntarily on November 3, 2025. Historical earnings may demonstrate work
24 experience; they do not establish a present opportunity at the same income."

25 **B. Findings and Order**

- 26 1) The Court does not find good cause to impute income to Father at this time.
 - 27 2) The Court will maintain the current orders.
 - 28 3) Child support shall remain set at \$0.
- 29

1 4) The requirement that Father pay \$3,000 per month towards amounts owed to Mother for child
2 support arrears, attorney's fees, and an equalization payment continues to be suspended pending
3 further order of the Court.

4 5) The seek work order for Father remains in full force and effect.

5 6) A review hearing is set for **Thursday, 10/15/2026 at 9:00 AM in Dept. 404.**

6 7) At least 20 calendar days prior to the next hearing date, Father shall file and serve an Income and
7 Expense Declaration and a declaration (not to exceed 5 pages in length, not including exhibits)
8 explaining his job search efforts, how he has been meeting his monthly expenses to date, and
9 whether he should be imputed with income.

10 8) At least 10 calendar days prior to the next hearing date, Mother shall file and serve an Income and
11 Expense Declaration and a declaration (not to exceed 5 pages in length, not including exhibits)
12 explaining what orders related to child support she would like the Court to make, how she has
13 been meeting her monthly expenses to date, and whether the Court should impute Father with
14 income and, if so, what amount and why.

15 9) The Court will prepare the Findings and Order After Hearing.
16
17
18
19
20
21
22
23
24
25
26
27
28
29